



CHAPTER clii.

An Act to extend the limits for the supply of gas by the Southend Gas Company and for other purposes.

A.D. 1914.

[7th August 1914.]

WHEREAS by the Southend Gas Act 1877 (in this Act called “the Act of 1877”) the Southend Gas Company (in this Act called “the Company”) were incorporated and were authorised to supply gas within the parishes of Prittlewell and Southchurch which parishes now form part of the municipal borough of Southend-on-Sea :

And whereas by the Southend Gas Act 1892 the Southend-on-Sea Gas Act 1898 the Southend-on-Sea Gas Act 1904 and the Gas Companies (Standard Burner) Act 1912 (each of which Acts is in this Act referred to separately as the Act of the year in which the same was passed) further powers were conferred upon the Company :

And whereas there are certain parishes and places adjoining or in the immediate vicinity of the existing limits of supply of the Company which are not now supplied with gas and it would be of public and local advantage that the Company should be authorised to supply gas within the parishes and places in the county of Essex herein-after mentioned :

And whereas the demand for gas within the Company’s limits of supply is increasing and in order to meet such increased demand and the demand for gas in the parishes and places by this Act added to the limits of supply of the Company it is expedient to authorise the Company to erect and maintain additional works and to raise additional capital :

And whereas it is expedient that new provisions should be made with reference to the quality and testing of the gas supplied

A.D. 1914. by the Company and that further powers should be conferred upon the Company as provided by this Act:

And whereas the following is a statement of the capital stock and loan capital of the Company:—

Capital Stock.

Act of Parliament authorising Capital Stock.	Description of Stock.	Standard dividend per cent.	Total paid up.	Premium received.	Remaining to be issued.	Total authorised.
Act of 1898 -	Original consolidated ordinary.	5	£ 59,292	£ —	£ —	£ 59,292
Act of 1898	New ordinary -	5	90,310	9,690	—	100,000
Act of 1904	{ New ordinary " B "	5	166,000	10,757	—	200,000
	{ New preference or new ordinary.	5	—	—	23,243	

Loan Capital.

Act of Parliament authorising Loan Capital.	Description of Loan.	Rate of interest per cent.	Total borrowed.	Premium received.	Remaining to be borrowed.	Total authorised.
Act of 1898	Debenture stock -	4	£ 48,330	£ 1,766	£ —	£ 48,330
Act of 1904	Debenture stock -	4	42,200	366	24,100	66,666

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and collective titles.

1. This Act may be cited as the Southend-on-Sea Gas Act 1914 and the Southend-on-Sea Gas Acts 1877 to 1904 and this Act may be cited together as the Southend-on-Sea Gas Acts 1877 to 1914.

Incorporation of general Acts.

2. The following Acts and parts of Act are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement):

The Gasworks Clauses Acts 1847 and 1871 Provided that A.D. 1914.
section 13 of the former Act shall be read as if the words
“or any premises” were inserted after the words “private
building” and as if the words “Provided also that every
“such contract entered into by the Company shall be
“alike in terms and amount under like circumstances to
“all consumers” were added at the end of that section:

The provisions of the Companies Clauses Consolidation Act
1845 with respect to the following matters (that is to
say):—

The distribution of the capital of the Company into
shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of
enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the
shareholders;

The borrowing of money by the Company on mortgage
or bond;

The consolidation of the shares into stock;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the
special Act by all parties interested:

Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III.
(relating to debenture stock) of the Companies Clauses
Act 1863 as amended by subsequent Acts.

3. In this Act the several words and expressions to which Interpreta-
tion.
meanings are assigned by the Acts wholly or partially incorporated
herewith shall have the same respective meanings unless there be
something in the subject or context repugnant to such construction
And the expressions—

“The limits of supply” means the limits for the time being
for the supply of gas by the Company;

“The corporation” means the mayor aldermen and burgesses
of the borough of Southend-on-Sea.

A.D. 1914.
Extension of
limits of
supply.

4.—(1) From and after the passing of this Act the existing limits of supply of the Company shall be extended so as to include therein the following parishes and places in the county of Essex (that is to say) Barling North Shoebury Shopland Sutton Great Wakering Little Wakering (except the detached portions of any of the said parishes) and so much of the parish of Eastwood and of the borough of Southend-on-Sea as was formerly part of that parish as lies to the east of an imaginary straight line drawn from the northernmost point of the boundary between the former parishes of Leigh and Prittlewell to the boundary between the parishes of Eastwood and Rochford at or immediately to the north of Blatches Farmhouse and to the west of the line forming the eastern boundary of the Southend Branch Railway of the Great Eastern Railway Company.

(2) The Company shall have and may exercise within the said parishes and places all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all the like duties liabilities and obligations in respect thereof as they for the time being have and are subject to within the remainder of their limits of supply.

Provision in
case of mains
not being laid
down within
a limited
period.

5. If at any time after the expiration of five years from the passing of this Act the Company have not laid down mains for the supply of gas within any parish mentioned in the section of this Act of which the marginal note is "Extension of limits of supply" so far as such parish is included under the provisions of this Act within the limits of supply this Act shall not be deemed to prevent any company person or local authority having statutory power so to do from supplying gas in such parish.

Powers as to
construction
and mainten-
ance of gas-
works &c.

6. Subject to the provisions of this Act the Company may upon the lands described in the schedule to this Act or on any of them or any part or parts thereof respectively erect lay down provide and from time to time maintain alter improve enlarge extend renew and remove or discontinue additional and other gasworks retorts and gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making storing and supplying gas and may make store and supply such gas accordingly and may on the said lands convert and manufacture residual products.

7. As from the first day of January one thousand nine hundred and fifteen— A.D. 1914.

(A) Every enactment in force immediately before that date whereby or by virtue whereof the gas supplied by the Company is required to be of a prescribed illuminating power shall cease to apply with respect to such gas and so much of the Act of 1912 as relates to the Company is hereby repealed: Substituting
standard cal-
orific power
for prescribed
illuminating
power.

(B) The Company shall cease to be under any liability or obligation to provide or maintain any apparatus for testing the illuminating power of such gas and shall be at liberty to remove any such apparatus which they may have provided:

(C) The Company shall not be liable to any penalty in respect of any deficiency in the illuminating power of the gas supplied by them:

(D) The gas supplied by the Company shall when tested in the mode and under the conditions for the time being prescribed by the metropolitan gas referees for testing the calorific power of gas be of a standard calorific power of five hundred and forty British thermal units gross per cubic foot (the expression "British thermal units" being used in this Act as meaning British thermal units gross per cubic foot) Provided that the Company shall not be liable to any penalty or proceedings for or in respect of deficient calorific power of the gas so supplied by them except in accordance with the provisions in this Act contained.

8.—(1) The prescribed testing-place for such of the purposes of the Gasworks Clauses Act 1871 as are applicable for the purposes of this Act and the testing-place for the purposes of this Act shall be a testing-place to be provided at the expense of the corporation in a suitable room at their municipal offices or town hall for the time being or at some other place appointed by them and within half a mile of the existing gasworks of the Company. Testing-
place.

(2) The Company shall as soon as reasonably may be after the date of the provision by the corporation of the said testing-place or after the first day of January one thousand nine hundred and fifteen whichever date shall be the later provide thereat apparatus similar to that for the time being prescribed by the

A.D. 1914. metropolitan gas referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905.

Provisions as to testing for calorific power.

9. The following provisions shall apply with respect to the testing for calorific power of the gas supplied by the Company (that is to say):—

- (1) Not more than one testing for calorific power shall be made on any one day (reckoned from midnight to midnight) except that in the event of the calorific power being on any testing ascertained to be below the standard calorific power by more than seven and a half per centum a second testing shall be made on the same day but at an interval of not less than one hour from the time of making the first testing and the average of the two testings shall be deemed to be the calorific power of the gas on that day:
- (2) The gas examiner shall forthwith give notice to the Company at their office of any defect of calorific power ascertained by him on any testing made under this section:
- (3) Sections 29 30 and 33 of the Gasworks Clauses Act 1871 in their application to the Company shall be construed as if calorific power were therein referred to in lieu of illuminating power:
- (4) The Company shall be entitled on each occasion of the testing of gas under the provisions of this Act to be represented by some officer who shall not interfere in the testing.

Penalties for deficient calorific power.

10. The Company shall not be liable to any penalty for defective calorific power where the calorific power on any day of the gas supplied by them is not below the standard calorific power to an extent exceeding seven and a half per centum but where the calorific power of such gas is on any day below the standard calorific power to an extent exceeding seven and a half per centum the Company shall be liable to the following penalties in respect of any deficiency beyond such margin of seven and a half per centum (that is to say):—

Where the deficiency exceeds seven and a half per centum but does not exceed ten per centum a sum not exceeding two pounds:

Where the deficiency exceeds ten per centum but does not exceed fifteen per centum a sum not exceeding five pounds : A.D. 1914.
—

Where the deficiency exceeds fifteen per centum a sum not exceeding one pound for every one per centum by which the calorific power is below such margin of seven and a half per centum.

11. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which the gas examiner reports or it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. Saving as to penalties.

12.—(1) The Company shall at any time within two years after the first day of January one thousand nine hundred and fifteen if and when required by any consumer of gas supplied by the Company (other than a consumer by prepayment meter) supply to him and fix free of charge a sufficient number of flat flame burners suitable in all respects for the consumption of gas of the calorific power prescribed by this Act in substitution for the flat flame burners in use by him before the said first day of January. Suitable burners to be provided in lieu of those now in use.

(2) The Company shall also as soon as reasonably practicable after the said first day of January one thousand nine hundred and fifteen and at the latest within a period of three months thereafter exchange the flat flame burners used by consumers of gas supplied by the Company by means of prepayment meters for flat flame burners similarly suitable for the consumption of gas of the calorific power prescribed by this Act.

(3) Notice of the provisions of this section shall be given on each demand note of the Company sent out during the first-mentioned period of two years.

13. The Company may raise additional capital not exceeding in the whole two hundred thousand pounds by the creation and issue of new ordinary stock or new preference stock or partly in one way and partly in the other but no such stock shall vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the Additional capital.

A.D. 1914. — sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of two hundred thousand pounds :

Provided also that not more than one-half of such additional capital shall be issued as preference stock.

Except as otherwise provided new stock to be subject to same incidents as ordinary stock.

14. Except as is by this Act otherwise provided the capital in new stock created by the Company under this Act and the new stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new stock were stock in that capital The capital in new stock so created shall form part of the capital of the Company.

Dividends on new stock.

15. Every person who becomes entitled to new stock shall in respect of the same be a holder of stock in the Company and shall be entitled to a dividend with the other holders of stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new stock or to the whole amount of such stock as the case may be :

Provided that—

- (1) In the application of the provisions of section 43 (Dividend dependent on price charged) of the Act of 1898 to any capital of the Company raised under the powers of this Act such provisions shall have effect as if the words “four shillings” were substituted for the words “four shillings and three pence” :
- (2) In case at any time the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the authorised rate on the ordinary stock created under the Act of 1898 and on the ordinary stock created under the Act of 1904 and on the ordinary stock created under this Act an equal reduction shall be made in the dividend on each class of stock :
- (3) The profits of the Company to be divided among the holders of preference stock forming part of the capital

raised under this Act shall not exceed the rate of six pounds in respect of every one hundred pounds actually paid up of such capital. A.D. 1914.

16.—(1) In any year after the year one thousand nine hundred and fourteen in which the divisible profits of the Company shall exceed the amount required to pay the dividends at the rates per centum paid by them for the year one thousand nine hundred and thirteen the Company shall transfer to a fund to be called “the capital redemption fund” the balance of such divisible profits remaining after paying the said dividends : Capital re-
demption
fund.

Provided that as soon as the Company shall under this subsection have transferred to the fund sums amounting in the aggregate to thirty thousand pounds this subsection shall cease to operate and have effect.

(2) The directors of the Company may in addition if they think fit at any time and from time to time appropriate out of the revenue of the Company as part of the expenditure on revenue account and transfer to the said fund any sums not exceeding in any one year the sum of three thousand pounds and not exceeding in the aggregate the sum of thirty thousand pounds.

(3) Every sum so transferred shall be applied by the Company as soon as reasonably possible to the purchase of ordinary or preference stock in the capital of the Company.

(4) Stock so purchased shall forthwith be cancelled and extinguished for all purposes whatsoever and thereupon the Company shall duly make an entry in their books to that effect.

(5) Except in the open market the Company shall not purchase any stock at a price exceeding the price at which according to the records of the Company the last transaction in stock of the same class took place and as soon as possible after each purchase under this section the Company shall inform the town clerk of the borough of Southend-on-Sea of the amount of each class of stock purchased and the price paid therefor.

17. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new stock to which a preferential dividend shall be assigned. Restriction
as to votes in
respect of
preferential
stock.

18.—(1) All new ordinary and preference stock created under the powers of this Act shall be issued in accordance with the provisions of this section. New stock to
be sold by
auction or
tender.

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(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

- (A) Notice of the intended sale shall be given in writing to the town clerk of Southend-on-Sea to the clerk of the district council of every district wholly or partly within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of ordinary and preference stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only provided in the case of an offer to holders of stock that if the aggregate amount of stock applied

for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively. A.D. 1914.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective stocks sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective stocks.

(6) The provisions of this section shall also apply to the issue after the passing of this Act of any ordinary or preference stock created under the powers of the Act of 1904 and the provisions of sections 11 to 14 of that Act are hereby repealed.

19. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage or debenture stock by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that all such sums shall be deemed to be part of the paid up capital of the Company for the purpose of determining the powers of the Company to raise money by borrowing and the amounts they may place to the special purposes and renewal funds. Application of premium arising on issue of stock.

20. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Power to borrow in respect of additional capital.

A.D. 1914. Consolidation Act 1845 before he so certifies that such stock has been issued and it and the premium (if any) have been fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Provisions as to auction &c. to apply to loan capital.

21. The provisions of this Act with respect to the disposing of stock by auction or tender and to the application of any money arising by way of premium shall mutatis mutandis apply to debenture stock issued and to any mortgages granted by the Company under this Act.

Debenture stock.

22. The Company may create and issue debenture stock subject to the provisions of section 42 of the Act of 1892 Notice of the effect of that enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages and debenture stock over other debts.

23. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Arrears may be enforced by appointment of a receiver.

24. Section 20 of the Act of 1904 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

25. All moneys raised under this Act whether by ordinary stock preference stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

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Application
of moneys.

26. The Company may apply to any of the purposes of this Act to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by ordinary stock preference stock debenture stock or borrowing under and by virtue of the Act of 1904 and which may not be required for the purposes to which they are by that Act made specially applicable.

Power to
Company to
apply autho-
rised moneys
to purposes
of Act.

27. If any money is payable to a stockholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in
case of per-
sons not sui
juris.

28.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called “the special purposes fund.”

Power to
create a
special pur-
poses fund.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly

A.D. 1914. — applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) Section 34 of the Act of 1892 is hereby repealed and section 15 (Application of premium arising on issue of stock) of the Act of 1904 shall be read and have effect as if the words "special purposes" had been inserted therein in lieu of the word "insurance."

Application of excess of profits over authorised rates of dividend.

29. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Company the excess shall subject to the provisions of the section of this Act whereof the marginal note is "Capital redemption fund" be carried to the credit of the divisible profits of such undertaking for the next following year:

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rates.

Power to lay pipes in private streets.

30. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Southend-on-Sea Gas Acts 1877 to 1914:

Provided that the corporation shall for the purposes of section 9 of the Gasworks Clauses Act 1847 be deemed in addition to any other persons to be persons having the control or management of such street and in relation to such street the corporation may enforce the provisions of section 10 of the said Act. Provided also that no pipe laid or relaid under the powers of this section shall be laid or relaid at a less depth than two feet from the surface of the street in which the same is laid:

Provided further that nothing in this section contained shall apply to any existing street belonging to and forming the

approach to any station or depôt of any railway company except with the consent of such company first being obtained such consent not to be unreasonably withheld nor shall the Company in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street of any railway company. A.D. 1914.

31. For the protection of the county council of the administrative county of Essex (in this section called "the county council") the following provisions shall unless otherwise agreed in writing between the Company and the county council apply and have effect within the parishes added under the provisions of this Act to the existing limits of the Company for the supply of gas (and which parishes are in this section called "the added limits") (that is to say):—

For protection of Essex County Council.

(1) In the case of all mains to be laid down by the Company under the powers of this Act the Company shall not permit any trench made by them in any main road vested in and maintainable by the county council to be open for a greater consecutive distance than four hundred yards if in such length of four hundred yards there is not room throughout for two carts to pass one another and the Company shall if and when reasonably required by the county council or their surveyor provide or pay the reasonable cost of providing two persons to manage and regulate the passing traffic while any trench referred to in this subsection shall be open for a consecutive distance of four hundred yards or more:

(2) All mains of the Company where the same are carried in along or over any roadway over any county or main road bridge vested in the county council shall be laid in such a position so far as reasonably practicable in or at the side of such road as the county council in writing under the hand of their surveyor may within fourteen days after receipt of the notice provided for by section 8 of the Gasworks Clauses Act 1847 reasonably direct and in the case of any main which it is reasonably necessary to lay otherwise than in the roadway over the bridge the same shall be carried on the structure of such bridge in such manner as the county council may in like manner direct and where any main of the Company has been laid at a

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depth below the surface of any main road of less than two feet the county council shall not be liable for or in respect of any damage or injury caused to such main by the use by the county council of any steam or other roller for the repair of any such road or of any traction engine belonging to the county council provided that such roller or engine does not exceed twelve tons in weight:

- (3) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall (subject to the provisions of this section) in their application to the laying of any main pipe in such main road county or main road bridge and the roadway over and approaches to such bridge be read and construed as if the notice required by section 8 of that Act was except in cases of emergency not less than seven days instead of three days:
- (4) The plan required by the ninth section of the Gasworks Clauses Act 1847 shall in the case of any main pipe to be carried over a bridge or the approaches thereto vested in the county council be accompanied by a section of the proposed works and shall be delivered to the county council or their surveyor by the Company not less than fourteen days before the commencement of the works to which it relates:
- (5) The Company shall not interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the county council which may be given upon such reasonable conditions as the county council or their surveyor may determine but shall not be unreasonably delayed or withheld:
- (6) The exercise of any of the powers of the Company within the added limits shall not interfere with prejudice or affect the right of the county council at any time to alter the level of or deviate or improve in any manner they think fit any main road in or along which any mains or pipes of the Company shall have been laid and the Company shall on receiving notice in writing under the hand of the clerk or surveyor of the county council so to do alter with all reasonable despatch the position of any such mains pipes or works in the manner and to the extent

prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed and the county council shall repay to the Company the expenses reasonably incurred by the Company in effecting any such alteration:

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- (7) The exercise of any powers of the Company under this Act within the added limits shall not prejudice or affect the right of the county council at any time to remove alter rebuild widen or repair any county or main road bridge or the approaches to any such bridge or the roadway over the same in over or attached to which any mains pipes or works of the Company are carried in the same manner as the county council might have removed altered rebuilt widened or repaired such bridge roadway or the approaches if this Act had not been passed and such mains pipes or works had not been so laid or attached but the county council shall take all reasonable precautions to prevent injury to the works of the Company and shall pay compensation for any loss which the Company may sustain by reason of any such injury During any such removal alteration rebuilding widening or reparation the county council shall afford to the Company all reasonable facilities for temporarily carrying such mains pipes and works across any stream or river so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains or pipes The county council shall repay to the Company the reasonable cost and expenses incurred by the Company in altering the position of any such mains or pipes or in relation thereto:

- (8) If the Company shall after reasonable notice from the county council under the hand of their surveyor neglect to do or complete any work or act required by subsections (6) and (7) of this section to be done by the Company then and in any such case the county council may do such work or act themselves under the superintendence (if given) of the Company completing the same with all reasonable expedition and in a proper and workmanlike manner and causing as little damage or inconvenience to the Company as circumstances admit:

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(9) The county council shall not execute any works under this section or enforce any of the provisions of this section so that the supply of gas by the Company shall be interrupted and if the county council so interrupt the supply of gas they shall repay to the Company any loss damages or expenses to which the Company may thereby be put or become subject:

(10) If any difference at any time arises between the county council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid.

For protec-
tion of Roch-
ford Rural
District
Council.

32. For the protection of the Rochford Rural District Council (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the Company and the council apply and have effect within the parishes added under the provisions of this Act to the existing limits of the Company for the supply of gas (and which parishes are in this section called "the added limits") :—

(1) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking-up of any street bridge sewer drain or tunnel shall (subject to the provisions of this section) in their application to the laying of any pipe over any bridge and its approaches be read and construed as if the notice required by section 8 of that Act was in the case of any main pipe not less than seven clear days instead of three clear days and in the case of any service pipe was not less than two clear days instead of three clear days:

(2) The exercise of any of the powers of the Company within the added limits shall not interfere with prejudice or affect the right of the council at any time to alter the level of deviate or improve in any manner they think fit any road or to rebuild or alter any bridge in along or over which any mains pipes or works of the Company shall have been laid and

the Company shall as soon as practicable after receiving notice in writing under the hand of the clerk or surveyor to the council so to do alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed and the cost of such alteration shall be paid to the Company by the council on demand:

- (3) The council shall not enforce any of the provisions of this section so that the supply of gas by the Company shall be liable to be interrupted:
- (4) Where any work of the Company has been laid at a depth of less than two feet below the surface of any road the council shall not be liable for or in respect of any damage caused to such work by the use by the council of any steam or other roller for the repair of any such road or of any traction engine belonging to the council provided that such roller or engine does not exceed twelve tons in weight:
- (5) Whenever the Company in the exercise of the powers of this Act shall have opened or broken up the road or pavement of any street or road vested in or repairable by the council they shall reinstate and make good such road or pavement to the satisfaction of the council and for that purpose section 10 of the Gasworks Clauses Act 1847 shall have effect as if the reinstatement and making good of the road or pavement required by that section included the application of a sufficient layer of surface metalling of the same specification as that employed by the council for the particular street or road and also included where the surveyor to the council deems it necessary the use of a steam roller on the places where the street or road has been opened or broken up for the purpose of laying any main pipe therein until the surface thereof has been made uniform with the unbroken surface adjoining:
- (6) If any difference shall arise between the council and the Company under this section such difference shall be settled by an arbitrator to be agreed on between them or failing agreement to be appointed on the application of either party by the President of the

A.D. 1914.

Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the reference.

For protection of Port of London Authority.

33. The Company shall not without the consent of the Port of London Authority lay down or place any mains pipes culverts or other works in under over along or across or otherwise interfere with the bed soil or shores of the River Thames within the limits of the Port of London as defined by the Port of London Act 1908 or in any way interfere with the navigation of the River Thames and nothing in this Act shall affect in any manner the rights powers or privileges of the Port of London Authority.

For protection of Great Eastern and Midland Railway Companies.

34. Notwithstanding anything in this or any other Act incorporated herewith contained the following provisions for the protection of the Great Eastern Railway Company and the Midland Railway Company (in this section respectively referred to as "the railway company") shall unless otherwise agreed in writing between the parties be in force and have effect:—

- (1) In laying down and in executing any works in connection with the laying down or the repair and renewal of any mains pipes or other works which the Company may by this Act be authorised to lay down and execute upon across over under or in any way affecting the railways lands or property belonging to the railway company or the bridges approaches viaducts stations or other works or any level crossings of or repairable by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and according to plans and sections to be previously submitted to and reasonably approved by him and in all things by and at the expense of the Company who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company Provided always that if such principal engineer shall not approve or disapprove any plan or section so submitted to him within twenty-eight days after such submission or shall refuse or neglect to superintend the work the

Company may proceed with the same without the approval of the said plan or section and without the superintendence of the said principal engineer: A.D. 1914.

(2) All such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or such stations and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Company shall make compensation in respect thereof to the railway company the amount of such compensation to be determined by arbitration in manner herein-after provided:

(3) Any difference which may arise between the railway company and the Company under the provisions of this section shall be settled by arbitration by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of the railway company and the Company or of either of them after notice to the other and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

35.—(1) Whenever the Company in exercise of the powers of this Act require to lay any main within the parishes added under the provisions of this Act to the existing limits of the Company for the supply of gas over under or within three feet of any main pipe or apparatus belonging to the Southend Waterworks Company (in this section referred to as “the water company”) or whenever the water company in the exercise of their statutory powers require to execute within the same parishes any work over under or within three feet of any main pipe or apparatus of the Company the Company or the water company as the case may be (in this section referred to as “the operators”) shall unless otherwise agreed between the parties interested give to the water company or to the Company as the case may be (in this section referred to as “the owners”) not less than twenty-four hours’ notice before commencing to execute any such work as aforesaid except in cases of emergency and then so soon as

For protection of Southend Waterworks Company.

A.D. 1914. — is possible after the beginning of the work or the necessity for the same shall have arisen.

(2) Where the operators find it necessary to undermine any such main pipe or apparatus they shall temporarily support the same in position during the execution of their works and before completion provide a suitable and proper foundation for the same where so undermined.

(3) Any question or difference which may arise between the Company and the water company under this section shall be settled by an engineer to be agreed upon or failing such agreement to be appointed upon the application of either of the parties in difference after notice to the other by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Period of
error in
defective
meters.

36. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of that Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company and section 48 (As to incorrect meters in certain cases) of the Act of 1898 is hereby repealed.

Power to
enter pre-
mises and
remove
fittings.

37. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Authentica-
tion and
service of
notices by
Company.

38. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed

thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

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39. Save as otherwise by this Act expressly provided all offences against the Acts for the time being relating to the Company and all penalties forfeitures costs and expenses imposed or recoverable under the said Acts or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of penalties &c.

40. Section 59 (Liability to gas rent not to disqualify justices &c.) and section 60 (Penalties not cumulative) of the Act of 1877 are hereby repealed.

Repeal of sections 59 and 60 of Act of 1877.

41. Proceedings for the recovery of any demand made under the authority of any of the Acts for the time being relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

42. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Saving as to general Acts.

43. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1914. The SCHEDULE referred to in the foregoing Act.

GAS LANDS.

A piece of land in the parish of Southend-on-Sea belonging to the Company and containing one rood and thirty-two perches or thereabouts bounded on the north by Burnaby Road on the south by the Company's existing gasworks on the east by a sewage pumping station of the corporation and on the west by premises known as No. 57 Burnaby Road.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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